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File No.: EXP202209121

SANCTION PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 5, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), as the owner of the website ***URL.1.

The reason for the complaint is that the complainant appears in a video that went viral after its publication on ***DATE.1 in digital newspapers (LA VOZ DE ASTURIAS and EL ESPAÑOL) and on social media platforms such as Instagram, YouTube, and Twitter, having been removed from all of them except Twitter.

The video, whose original source is unknown, consists of a montage of successive takes in which the affected individual, recorded by someone known (as stated in a previous complaint), looks at the camera and comments on how many glasses of wine and alcohol he is drinking throughout a night, showing the consequent evolution that alcohol consumption produces in his state.

The video has been widely disseminated and can be easily located with tags such as "***TAG.1" or "***TAG.2".

The affected individual has approached Twitter to request the removal of the video, but his request was denied on the grounds that the content does not violate Twitter's rules.

The requested links are:

Twitter

***LINK.1

***LINK.2

***LINK.3

***LINK.4

***LINK.5

***LINK.6

***LINK.7

***LINK.8

***LINK.9

***LINK.10

***LINK.11

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***LINK.12

***LINK.13

***LINK.14

***LINK.15

***LINK.16

***LINK.17

***LINK.18

***LINK.19

***LINK.20

***LINK.21

***LINK.22

***LINK.23

***LINK.24

***LINK.25

***LINK.26

***LINK.27

***LINK.28

***LINK.29

***LINK.30

Instagram

***LINK.31

***LINK.32

Digital newspapers

***LINK.33

***LINK.34

YouTube

***LINK.35

Other websites

***LINK.36

***LINK.37

***LINK.38

***LINK.39

The date on which the claimed events took place: ***DATE.1

Relevant documentation provided by the complainant:

- Emails addressed to TWITTER and their corresponding responses

SECOND: On September 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

Regarding the claimed publication, it should be noted that B.B.B. is the owner of the website ***URL.1 with NIF ***NIF.1 and address at ***ADDRESS.1.

A precautionary measure for the removal of the claimed content published on the website ***URL.1 was issued to the registrar of this website, and on October 10, 2022, a document was received by this Agency from this responsible party informing that he had requested the immediate removal of the claimed content from the website owner, ensuring the execution of the measure. On this same date, it was verified that the content had been removed.

The owner of this website was requested to inform this Agency of the session IP addresses of the user who had published the claimed content, and on May 29, 2023, a response document was received by this Agency informing that the user who published this content is himself and that although he works as a bricklayer, he developed this website as a hobby.

Regarding the publication referred to in the complaint, he had taken it from another website, and he adds that as soon as he became aware of the precautionary measure for the removal of content, it was deleted.

FOURTH: On July 25, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6 of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, taking into account that the respondent has not made allegations to the initiation agreement of the file and in light of what...

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Established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in the present case.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

FIRST: The dissemination of a video on the website ***URL.1, without the consent of the recorded person, consisting of a montage of successive shots in which the affected individual, recorded by an acquaintance, looks at the camera and comments on how many glasses of wine and alcohol he is consuming throughout a night, showing the consequent evolution that alcohol intake produces in his state.

LEGAL GROUNDS

I

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of the complainant) carried out by the respondent is in accordance with the provisions of the GDPR.

III

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data, indicating the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of his or her personal data for one or more

specific purposes;

- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of ensuring the safety of persons and property, as well as their facilities.”

IV

In the present case, the dissemination of a video that went viral after its publication on ***DATE.1 in digital newspapers and social networks is reported.

Regarding the publication claimed by the respondent as the owner of the website ***URL.1, it should be noted that a precautionary measure for the removal of the claimed content published on the website ***URL.1 was issued directed to the registrar of this website by the AEPD, and on October 10, 2022, this Agency received a letter from this responsible party informing that he had requested the immediate removal of the claimed content from the website owner, ensuring the execution of the measure.

On the same date, it was verified that the content had been removed.

When requested to inform this Agency of the session IP addresses of the user who had published the claimed content on this site, on May 29, 2023, a response letter was received by this Agency informing that the user who published this content is the respondent and that although he works as a bricklayer, he developed this website as a hobby.

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Regarding the publication referred to in the complaint, the respondent indicates that it had taken it from another website, but as soon as it became aware of the precautionary measure for the removal of content, it was deleted.

In light of this, it is considered that the facts presented, namely, the dissemination of a video that may harm the image of a person, without their consent, makes the processing of their image as personal data potentially unlawful, thus violating what is established in Article 6 of the GDPR, as indicated in legal basis III, which could imply the commission of an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:
b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

V

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are effective, proportionate, and dissuasive in each individual case.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

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- f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the transcribed provisions, it is appropriate to determine the sanction to be imposed on the respondent and set it at the amount of €2,000 in accordance with Article 58.2 of the GDPR.

VI

Article 69.1 and 2 of the LOPDGDD, relating to provisional measures and guarantees of rights, states the following:

“1. During the preliminary investigation proceedings or when a procedure for the exercise of the sanctioning power has been initiated, the Spanish Agency for Data Protection may, with justification, agree to the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication, or international transfer would seriously undermine the right to personal data protection, it may order the controllers or processors of the processing to block the data and cease its processing, and, in case of non-compliance with these mandates, proceed to immobilization.”

On the other hand, Article 56 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), as applicable, states the following:

“1. Once the procedure has been initiated, the administrative body competent to resolve may adopt, ex officio or at the request of a party and in a reasoned manner, the provisional measures it deems appropriate to ensure the effectiveness of the resolution that may be issued, if there are sufficient elements of judgment for this, in accordance with the principles of proportionality, effectiveness, and minimal burden.

2. Before the initiation of the administrative procedure, the competent body to initiate or instruct the procedure, ex officio or at the request of a party, in cases of urgent and unavoidable necessity and for the provisional protection of the interests involved, may adopt in a reasoned manner the provisional measures that are necessary and proportionate. The provisional measures must be confirmed, modified, or lifted in the initiation agreement of the procedure, which must be made within fifteen days following their adoption, which may be subject to the appropriate appeal. In any case, such measures will be rendered ineffective if the procedure is not initiated within that period or when the initiation agreement does not contain an express statement regarding them.

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3. In accordance with the provisions of the two preceding paragraphs, the following provisional measures may be agreed upon, in the terms provided in Law 1/2000, of January 7, on Civil Procedure: (...)

i) Any other measures that, for the protection of the rights of the interested parties, are expressly provided for by law, or that are deemed necessary to ensure the effectiveness of the resolution.

4. Provisional measures that may cause harm that is difficult or impossible to repair to the interested parties or that involve a violation of rights protected by law may not be adopted.

5. Provisional measures may be lifted or modified during the processing of the procedure, ex officio or at the request of a party, by virtue of unforeseen circumstances or those that could not be taken into account at the time of their adoption. In any case, they will expire when the administrative resolution that concludes the corresponding procedure takes effect.”

In the present case, a precautionary measure for the removal of the claimed content published on the website ***URL.1 directed to the registrar of this website, dated October 10, 2022, is received in this Agency, a letter sent by this responsible party informing that they had requested the immediate

removal of the claimed content from the website owner, ensuring the execution of the measure. On the same date, it is verified that the content has been removed.

Requested from the owner of this website to inform this Agency of the session IP addresses of the user who had published the claimed content on this site, on May 29, 2023, a response letter is received in this Agency informing that the user who published this content is himself and that although he works as a bricklayer, he developed this website as a hobby.

Regarding the publication referred to in the complaint, he had taken it from another website and adds that as soon as he became aware of the precautionary measure for the removal of content, it was deleted.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been accredited,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified in Article 83.5 a) of the GDPR, a fine of 2,000 euros (TWO THOUSAND euros).

SECOND: TO RAISE TO FINAL the PROVISIONAL MEASURE agreed on October 10, 2022, in the investigative proceedings of the present procedure. Consequently, B.B.B., with NIF ***NIF.1, is required, pursuant to Article 58.2.d)

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of the GDPR, within one month from the notification of this resolution, shall prove that it has ceased the dissemination of the video subject to this sanctioning procedure.

THIRD: NOTIFY this resolution to B.B.B.

FOURTH: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested

party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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